LETWIN SIYAMPONGO
versus
CITY OF HARARE

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 23 January & 17 June 2026

Civil Trial

Miss S Takaindisa, for Plaintiff
Miss N.R Masamvi, for Respondent

TAKUVA J: This is a delictual claim for damages. Plaintiff issued summons against the Defendant claiming the following;

1. Payment of the sum of USD $10 000-00 being damages for pain and suffering.
2. An order in terms of s 85(1) of the Constitution declaring the conduct of the Defendant to be in violation of Plaintiff's rights in s 76 of the Constitution
3. Interests at the rate of 5% per annum from 14 April 2022 to date of payment in full.
4. Costs of suit.

The following issues were referred to trial;

(a) Whether or not the Defendant's Health Officials breached any duty of care towards the Plaintiff.
(b) If so whether or not the plaintiff is entitled to the quantum of damages being claimed by the Defendant

The onus to prove all the issues rested on the plaintiff. The Plaintiff having closed her case, Defendant made an application for absolution from the instance which application is being opposed by the Plaintiff.

Plaintiff's Evidence

The Plaintiff gave evidence in person. The synthesis of her testimony is as follows;

1. That she visited Old High field Clinic as she was experiencing persistent Labour pains. Her waters had broken.
2. That she arrived at approximately 4 and was attended so by some nurses who instructed her to proceed to the beds without examining her.
3. That at around 6pm, nurses gave her pink pain killers and advised her to go back home since she was not yet due for delivery. She refused both the medication and the instruction to return home.
4. That at approximately 9pm, she felt the urge to relieve herself and she decided to use a bucket for this purpose. She then felt the baby coming and she delivered the child by herself resulting in the baby falling on the floor.
5. That despite calling the nurses to attend to her immediately before giving birth, none of the nurses came.
6. That she observed injuries on her baby's eyes and back of the head that appeared red. No examination was done on her and her baby.
7. That she was subsequently moved to another ward until the time of her discharge the following day after 11 am.
8. That the maternity record that she obtained from the Defendant was fabricated especially where it is indicated that she had defaulted her antiretroviral medication and that she had been examined at any stage and that she gave birth with assistance
9. That she made a report to her lawyers and to Old High Field Clinic about the fabrications and was assured that investigations would ensure.
10. That Defendant breached its duty of care due to the failure of its employees to examine her the entire time she was admitted at the clinic, despite showing signs of labour and that the Defendant failed to attend to her when she was about to give birth resulting in her giving birth unattended and the baby falling on the floor.

DEFENDANTS'S SUBMISSIONS

It was contended that the application for absolution from the instance has merits for the following reasons;

(i) That the Plaintiff failed to establish the duty of care and its breach in that no credible evidence was led to demonstrate that this duty was breached.

(ii) The maternal health record shows that the Plaintiff was attended to at 1530hrs, monitored during labour, attended by two nurses during delivery and that both mother and child were discharged in satisfactory condition;

(iii) That the documentary evidence also shows that the Plaintiff's baby was given the required PMTC medication and that the Plaintiff was required to have tests done before she could be reinitiated on her anti-retroviral medication.

(iv) That the Plaintiff failed to establish negligence in that she produced no expert evidence that the standard of care was inadequate. She called no witness to support her claim of abandonment. She tendered no documentation. In the result, her bare allegation, contradiction by the and unsupported by any corroborating evidence are insufficient to establish breach of duty.

(v) That the Plaintiff's suggestion that her child's head struck the floor during an unattended birth remains unproven, unsupported by any medical evidence and contradicted by the record which shows she was attended during delivery; In the result causation collapses entirely.

(vi) That Plaintiff's claim for damages and the quantum there of is speculative in that she provided no basis for this figure of USD $10 000. She produced no receipts for treatment no psychological assessment and no expert opinion on quantum.

LAW AND ANALYSIS

The principles governing absolution from the instance are well settled – see *UNITED AIR CHARTERS (PVT) Ltd* v *JARMAN* 1994 (2) ZLR 341 (s) where the court stated that,

> " A Plaintiff successfully withstand such an application if at the close of his case, there is evidence upon which a court; directing its mind reasonably to such evidence, could or might (not should or ought) find for him."

Similarly in *SUPREME SERVICES STATION (1969) (Pvt) Ltd* v *Fox AND GOODRIDGE (Pvt) Ltd* 1971 (1) RLR 1 (A), BEADLE CJ explained that the test boils down to this; is there sufficient evidence on which a court might make a reasonable mistake and give judgment for the plaintiff? The threshold is minimum but it requires more than conjecture.

The test was further explained in *MAZIBUKO* v *SANTAM INSURANCE CO. LTD AND ANOR* 1982 (3) SA 125/A, in the following words;

> "In an application for absolution made by the defendant at the close of the plaintiff's case the question to which the court must address itself is whether the plaintiff has adduced evidence upon which a court, applying its mind reasonably could or might find for the plaintiff, in other words whether plaintiff has made out a *prima facie* case."

See also *TIZIRAI CHITSWANDA & ANOR* v *OR ZIMBABWE Ltd* SC84/20 where the court held that;

"Critically the test to be applied is not whether or not the evidence for the plaintiff establishes what would finally be required to be established to obtain judgment. The evidence required at this stage is whether or not the plaintiff has made out a *prima facie* case to prove the claim. Further, the approach to an application for absolution from the instance was also set out in *GORDON LYOYD PAGE & ASSOCIATES* v *RIVERA* 200/ (1) SA SS, at pp 92-93 by HARMS J A. He states

> "The test for absolution to be applied by a trial court at the end of a plaintiff's case, is not whether the evidence led by plaintiff establishes, what would finally be required to be established, but whether there is evidence upon which a court, applying its mind reasonably to such evidence, could or might (not showed, nor ought to) find for the plaintiff. *GASCOYNER* v *Pane and Hunter* 1917 TPD 170 at 173; *RUTO FLOUR MILLS (PTY) Ltd* v *ADELSON (2)* 1958 (4) SA 307 (T).
> This implies that a plaintiff has to make out a *prima facie* case in the sense that there is evidence relating to all elements of the claim to survive absolution because without such evidence no court could find for the Plaintiff". (my emphasis)

In the present matter, the Plaintiff's claim is rooted in delict and she has to satisfy the requirements of an *aquiline* action incorporating harm in order for her to establish a *prima facie* case. The Plaintiff gave a detailed narration of events that she alleged occurred when she visited the Defendant's clinic. In my view her version touches on all the elements of a general Aquilian action. This evidence minus the material record establishes a *prima facie* case. However, the matter does not end here as there is need to consider the contents of the material record produced by the Plaintiff. I must indicate now that the left in seeking to destroy the Plaintiff's credibility and ultimately the *prima facie* case relied heavily on the maternal record.

This exclusive reliance at this stage is neither fair nor justifiable for the following reasons;

1. The report is challenged by the Plaintiff as being a fabrication.
2. The report was authored by the Delft's employees.
3. The circumstances surrounding the compilation of the record have not been fully explained.
4. The complete explanation can only come from the people who interacted with the plaintiff at the clinic.
5. There is therefore need not only for the entries to be explained but also for the authors of those entries to testify and their testimony tested. I take the view that once an allegation of fabrication of a documentary exhibit is made against the defendant the onus shifts to the latter to rebut such an averment.

There is therefore need for the Defendant to be placed on its defence.

Accordingly, it is ordered that;

1. The application for absolution from the instance be and is here by dismissed with costs.
2. Registrar will set the matter down for continuation on the next available date.

TAKUVA J:…….

Bhatasara Attorney: Plaintiff's Legal Practitioners
Gambe Law Group: Defendant's Legal Practitioners